



Licensing (Low Alcohol Drinks) Act 1990

1990 CHAPTER 21

An Act to amend the definition of “intoxicating liquor” in the Licensing Act 1964 and “alcoholic liquor” in the Licensing (Scotland) Act 1976 with respect to alcohol in low alcohol drinks.
[13th July 1990]

BE IT ENACTED by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In the definition of “intoxicating liquor” in section 201(1) of the Licensing Act 1964, for paragraph (a) (exclusion of any liquor which, whether made on the premises of a brewer for sale or elsewhere, is found on analysis of a sample thereof at any time to be of an original gravity not exceeding 1016° and of a strength not exceeding 1.2 per cent) there shall be substituted the following—

“(a) any liquor which is of a strength not exceeding 0.5 per cent at the time of the sale or other conduct in question;”.

Low alcohol liquor not to be intoxicating liquor for the purposes of the Licensing Act 1964.

1964 c. 26.

2. In the definition of “alcoholic liquor” in section 139(1) of the Licensing (Scotland) Act 1976 (which contains the same exclusion) for the words from “on analysis of” to the words “1.2%” there shall be substituted the words “is of a strength not exceeding 0.5%”.

Corresponding provision for Scotland.
1976 c. 66.

3.—(1) This Act may be cited as the Licensing (Low Alcohol Drinks) Act 1990.

Short title, commencement and extent.

(2) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint; but if and to the extent that it has not come into force before 1st January 1994 it shall come into force automatically on that date.